

National Academy of Legal Studies and Research University Act, 1998

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State of Andhra Pradesh - Act

National Academy of Legal Studies and Research University Act, 1998

ANDHRA PRADESH

India

National Academy of Legal Studies and Research University Act, 1998

Act 34 of 1998

Published on 18 December 1998

Commenced on 18 December 1998

[This is the version of this document from 18 December 1998.]

[Note: The original publication document is not available and this content could not be verified.]

National Academy of Legal Studies and Research University Act, 1998

(Act

No. 34 of 1998

)

Last Updated 6th September, 2019

Statement of Objects and Reasons. - In pursuance of the resolution of the Law Ministers' Conference at Hyderabad in November, 1995 to establish a National Law School type of Institution for legal education in every State, the High Court of Andhra Pradesh got registered 'the National Society for Promotion and Advancement of Legal Studies and Research' under the Andhra Pradesh (Telangana Area) Public Societies Registration Act, 1350 Fasli, the objects of which, Inter alia, Include the establishment of Centres of learning to achieve the objects of the Society.

2. The Society desired to establish the 'National Academy of Legal Studies and Research' at Hyderabad in furtherance

of that object and requested the Government of Andhra Pradesh to establish the same as a University by law.

3. Accordingly the National Academy of Legal Studies and Research Bill, 1997 (L.A. Bill 11 of 1997) was Introduced In the Legislative Assembly of the State and was passed by It. When the Bill was submitted for his assent His Excellency the Governor referred it to the President of India under Article 200 of the Constitution for giving assent.

4. While so, the Society in the meanwhile addressed the Government to withdraw the Bill as It felt that the Bill required changes and amendments from its present form and made proposals accordingly.

5. The Council of Ministers accordingly resolved to withdraw the National Academy for Legal Studies and Research Bill, 1997 (L.A. Bill No. 11/97) which was passed by the Legislative Assembly and awaiting the assent of the President under Article 200 of the Constitution.

6. In pursuance of the said resolution, the Principal Secretary to Governor of Andhra Pradesh has addressed a letter to the Secretary to President, Government of India to return the same as withdrawn. The Government of India have returned the pending L.A. Bill 11 /97 intimating that it is treated as withdrawn.

7. After withdrawal of the Bill from the Government of India the said Society has requested the Government to take immediate steps for the establishment of the said University so as to commence functioning from the current academic year i.e., 1998-1999. Therefore, it was decided to enact a law for the said purpose duly incorporating all the suggestions of the society.

8. As the Legislative Assembly of the State was not then in session and as it has been decided to give effect to the above decision immediately, the National Academy of Legal Studies and Research Ordinance, 1998 (A.P. Ordinance No. 3 of 1998) has been promulgated by the Governor on the 12th June, 1998.

The Bill seeks to replace the said Ordinance.

The following Act of the Andhra Pradesh Legislative Assembly received the assent of the Governor on the 18th December, 1998 and the said assent is hereby first published on the 22nd December, 1998 in the Andhra Pradesh Gazette for general information: -

(Received the assent of the Governor on the 18th December, 1998)

(First published in the Andhra Pradesh Gazette, Part IV-B, Extraordinary on the 22nd December, 1998)

An Act for the establishment of a University by the name of the National Academy of Legal Studies and Research University at Hyderabad in Andhra Pradesh and for matters connected therewith and, incidental thereto.

Whereas, a Society under the name and style of the National Society for Promotion and Advancement of Legal Studies and Research has been registered under the Andhra Pradesh (Telangana Area) Public Societies Registration Act, 1350-F, the objects of which, inter alia include the establishment of centers of learning to achieve the objects of the society;

And whereas, in furtherance of the said objects, the Society, desires to establish the "National Academy of Legal Studies and Research" at Hyderabad;

And whereas, the Society has requested the Government of Andhra Pradesh to establish the National Academy of Legal Studies and Research as a University by law at the earliest so that it can commence functioning, during the academic year 1998-99;

And whereas, after due consideration of the request of the said society it is deemed expedient to establish the National Academy of Legal Studies and Research as a University for the purposes hereinafter specified;

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Forty-ninth Year of the Republic of India as follows:

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called the National Academy of Legal Studies and Research University Act, 1998.

(2)

It shall be deemed to have come into force on and from the 15th June, 1998.

2.

Definitions.

- In this Act, unless the context otherwise requires:

(a)

"Prescribed" means prescribed by the Rules, Statutes and Regulations made under this Act;

(b)

"Society" means the National Society for Promotion and Advancement of Legal Studies and Research registered under the Andhra Pradesh (Telangana Area) Public Societies Registration Act, 1350 Fasli;

(c)

"University" means the National Academy of Legal Studies and Research University established under Section 3 of this Act. Herein after named as Nalsar University Of Law]

[Added by Act 7 of 2005.]

Chapter II

The University

3.

Establishment of University.

(1)

There shall be established in the State of Andhra Pradesh a University by the name of the [Nalsar University Of Law]

[Substituted by Act 7 of 2005.]

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(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by its name represented by the Registrar of the University.

(3)

The University shall be engaged in teaching and research in law and in allied disciplines.

(4)

The main seat of the University shall be at Hyderabad and it may establish campuses at such other places as it may deem fit.

4.

Objects of the University.

- The objects of the University shall be :

(i)

to evolve and impart comprehensive legal education at all levels to achieve excellence;

(ii)

to organise advanced studies and promote research in all branches of law;

(iii)

to disseminate legal knowledge by organising lectures, seminars, symposia, workshops and conferences;

(iv)

to promote cultural, legal and ethical values with a view to promote and foster the rule of law and the objectives enshrined in the Constitution of India;

(v)

to improve the ability to analyse and present for the benefit of the public contemporary issues of public concern and their legal implications;

(vi)

to liase with institutions of higher learning and research in India and abroad;

(vii)

to publish periodicals, treatises, study books, reports, journals and other literature on all subjects relating to law;

(viii)

to hold examinations and confer degrees and other academic distinctions;

(ix)

to promote legal awareness in the community for achieving social and economic justice;

(x)

to undertake study and training projects relating to law, legislation and judicial institutions; and

(xi)

to do all such things as are incidental, necessary or conducive to the attainment of all or any of the objectives of the University.

5.

Powers and functions of the University.

- The powers and functions of the University shall be:

(i)

to administer and manage the University and such centers for study, research, education and instructions as are necessary in furtherance of the objects of the University;

(ii)

to provide for instruction in all branches of knowledge or learning pertaining to law and allied subjects as the University may deem fit;

(iii)

to make provisions for research and for the advancement and dissemination of knowledge of law;

(iv)

to institute degrees, titles, diplomas, certificates and other distinctions;

(v)

to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons subject to such conditions as the University may determine and to withdraw any such degrees, titles, diplomas and other academic distinctions subject to such conditions as the University may determine;

(vi)

to fix, demand and receive fees and other charges as may be prescribed;

(vii)

to institute and maintain halls and hostels and to recognise places of residence for the students of the University and to withdraw such recognition accorded to any such place of residence;

(viii)

to establish special centers, specialised study centers or other units for research and instructions as are in the opinion of the University necessary in furtherance of its objects;

(ix)

to supervise and control the residence and to regulate the discipline of the students and staff of the University and to make arrangements for promoting their health and general welfare;

(x)

to make such arrangements in respect of residence, discipline and teaching of women students;

(xi)

to create academic, technical, administrative, ministerial and other posts and to make appointments thereto;

(xii)

to regulate and enforce discipline among the employees of the University and to take such disciplinary measures as may be deemed necessary;

(xiii)

to institute professorships, associate professorships, assistant professorships, readerships, lecturerships and any other teaching, academic or research posts required by the University;

(xiv)

to appoint persons as professors, associate professors, assistant professors, readers, lecturers or otherwise as teachers and researchers of the University and as other classes of employees;

(xv)

to institute and award Fellowships, Scholarships, Prizes and Medals;

(xvi)

to provide for printing, reproduction and publication of research and other works and to organise exhibitions;

(xvii)

to sponsor and undertake research in all aspects of law, justice and social development;

(xviii)

to co-operate with any other organisations in the matter of education, training and research in law, justice, social

development and allied subjects for such purposes as may be agreed upon on such terms and conditions as the University may from time to time determine;

(xix)

to co-operate with institutions of higher learning in any part of the world having objects wholly or otherwise similar to those of the University by exchange of teachers and scholars and generally in such manner as may be conducive to the common objects;

(xx)

to regulate the expenditure and to manage the accounts of the University;

(xxi)

to establish and maintain within the premises of the University or elsewhere such Schools, Colleges and Study halls as the University may consider necessary and adequately furnish the same and to establish and maintain such libraries and reading rooms as may appear convenient or necessary for the University;

(xxii)

to receive grants, subventions, subscriptions, donations and gifts for the purposes of the University consistent with the objects for which the University is established;

(xxiii)

to purchase, take on lease, or accept as gifts, or otherwise any land or building or works, which may be necessary or convenient for the purpose of the University and on such terms and conditions as it may think fit and proper and to construct or alter and maintain any such building or works;

(xxiv)

to sell, exchange, lease or otherwise dispose of all or any portion of the properties of the University, movable or immovable, on such terms and conditions as it may think fit and proper without prejudice to the interests and activities of the University;

(xxv)

to draw and accept, to make and endorse, to discount and negotiate Government of India and other promissory notes, bills of exchange, cheques or other negotiable instruments;

(xxvi)

to execute conveyances, transfers, reconveyances, mortgages, leases, licences and agreements in respect of property, movable or immovable including Government securities belonging to the University or to be acquired for the purpose of the University;

(xxvii)

to appoint in order to execute an instrument or transact any business of the University any person as it may deem fit;

(xxviii)

to give up and cease from carrying on any classes or departments of the University;

(xxix)

to enter into any agreement with the Central Government, State Government, the University Grants Commission or other Authorities for receiving grants;

(xxx)

to accept grants of money, securities or property of any kind or description on such terms and conditions as may be deemed expedient;

(xxxi)

to raise and borrow money on bonds, mortgages, promissory notes or other obligations or securities founded or based upon all or any of the properties and assets of the University or without any securities and upon such terms and conditions as, it may think fit, and to pay out of the funds of the University, all expenses incidental to the raising of money, and to repay and redeem any money borrowed or debt made;

(xxxii)

to invest the funds of the University or moneys entrusted to the University in or upon such securities or deposits and in such manner as it may deem fit and from time to time transpose any investments;

(xxxiii)

to make such Statutes, Regulations and other instruments as may, from time to time, be considered necessary for regulating the affairs and the management of the University and its properties and to alter, modify and to rescind them;

(xxxiv)

to constitute for the benefit of the academic, technical, administrative and other staff, in such manner and subject to such conditions as may be prescribed pension, insurance, provident fund and gratuity and other schemes as it may deem fit and to make such grants as it may think fit for the benefit of the staff of the University and to aid in the establishment and support of associations, institutions, funds and trusts for the benefit of the staff and the students of University; and

(xxxv)

to do all such other acts and things as the University may consider necessary, conducive or incidental to the attainment or enlargement of the aforesaid objects or any of them;

5A.

[Reservation of seats for admission of the students into the courses.

[Inserted by Act No. 6 of 2010, dated 12.4.2010.]

- There shall be reservation of seats in the courses in favour of Schedule castes, Scheduled Tribes, Physically challenged persons, Women and resident students of Andhra Pradesh as may be prescribed. However, the reservations to the resident students shall be to the candidates who passed qualifying examination in the educational institutions in the State and Common Law Admission Test (CLAT) and to the extent of twenty percent of the sanctioned intake of courses in the University.]

6.

Teaching in the University.

(1)

All teaching in connection with the degrees, diplomas and certificates of the University shall be conducted in accordance with the syllabus prescribed by the Regulations.

(2)

The courses and curricula and the authorities responsible for organising the teaching of such courses and curricula shall be as prescribed by the Regulations.

7.

[Chancellor]

[Substituted by Act 7 of 2005.]

of the University.

(1)

The Chief Justice of Andhra Pradesh shall be the Chancellor of the University and in his absence, the acting Chief Justice of Andhra Pradesh shall discharge the functions of the Chancellor.

(2)

The Chancellor, when present, shall preside over the convocations of the University and the meetings of the General Council.

(3)

The [Chancellor]

[Substituted by Act 7 of 2005.]

may cause an inspection to be made by such person or persons as he may direct, of the University, its buildings, libraries and equipment and of any institution maintained by the University, and also of the examinations, teaching and other work conducted or done by the University and cause an inquiry to be made in the like manner in respect of any matter connected with the administration and finances of the University.

(4)

The Chancellor may offer such advice to the University as he may deem fit with reference to the result of such inspection or inquiry.

(5)

The University shall communicate to the Chancellor the action taken or proposed to be taken on such advice.

(6)

In case of differences among the authorities or officers of the University on any matter which cannot be otherwise resolved, the decision of the Chancellor shall be final.

(7)

The Chancellor may invite a person or persons of eminence in law and legal education to advise the University in relation to affairs of the University as and when he deems it necessary.

Chapter III

Authorities of the University

8.

Authorities of the University.

- The following shall be the authorities of the University:

- (i)
the General Council;
- (ii)
the Executive Council;
- (iii)
the Academic Council;
- (iv)
the Finance Committee;
[(iv-a) the Planning Board, and;]
[Inserted by Act 7 of 2005.]
- (v)
[such other authorities as may from time to time be declared as such by the Statutes]
[Substituted by Act 7 of 2005.]

.

9.

General Council and its terms of Office.

(1)

The General Council shall consist of the following persons:

- (a)
[Chancellor]
[Substituted by Act 7 of 2005.]
- (b)
Former Presidents or Chancellors² on invitation of the Chancellor;
- (c)
Vice-Chancellor;
- (d)
Attorney General of India;
- (e)
A nominee of the Chairman of the Bar Council of India from amongst the members of the Bar Council of India;
- (f)
Advocate General of Andhra Pradesh;
- (g)
Chairman, Bar Council of Andhra Pradesh;
- (h)
two pre-eminent persons in the disciplines of Social Sciences and Humanities nominated by the Chancellor;
- (i)
two persons from amongst sitting or retired judges of High Court of Andhra Pradesh, nominated by the Chancellor;
- (j)
two persons from amongst the Board of Governors of the society nominated by the Chancellor;
- (k)
two pre-eminent persons in legal or educational field, nominated by the Chancellor;
- (l)
five members nominated by the Government of Andhra Pradesh among whom, one shall be the Chief Secretary, one shall be the Principal Secretary of the Finance and Planning (Fin.Wing) Department and one shall be the Law Secretary

- and remaining two from amongst distinguished academicians or administrators connected with law and allied disciplines;
- (m)
the Registrar; and
- (n)
all the Professors who are the Heads of Departments in the University.
- (2)
- (i)
where a person has become a member of the General Council by reason of the office or appointment he holds, his membership shall terminate when he ceases to hold that office or appointment;
- (ii)
The term of office of the nominated members of the General Council other than the ex-officio members shall be three years;
- (iii)
A member of the General Council shall cease to be a member if he resigns or becomes of unsound mind, or becomes insolvent or is convicted of a criminal offence involving moral turpitude. A member, other than the Director, Registrar or Professor, shall also cease to be member if he accepts a full time appointment in the University; or if he not being an Ex-Officio member fails to attend three consecutive meetings of the General Council without the leave of the [Chancellor]
[Substituted by Act 7 of 2005.]
;
- (iv)
A member of the General Council other than an exofficio member may resign his office by a letter addressed to the Chancellor and such resignation shall take effect as soon as it has been accepted by him; and
- (v)
Any vacancy in the General Council shall be filled by nomination by the respective nominating authority and on expiry of the period of the vacancy, such nomination shall cease to be effective.
10.
Powers, functions and meetings of the General Council.
- (1)
The General Council shall be the plenary authority of the University and shall formulate and review from time to time the broad policies and programmes of the University and devise measures for the improvement and development of the University and shall also have the following powers and functions; namely:
- (i)
to consider and pass the annual report, financial statement and the budget estimates prepared by the Executive Council and to adopt them with or without modification;
- (ii)
to make statutes concerning the administration of the affairs of the University including prescribing the procedures to be followed by, the authorities and the officers of the University in the discharge of their functions; and
- (iii)
[.....]
[Omitted by Act 7 of 2005.]
- (2)
- (i)
the General Council shall meet at least once in a year and annual meeting of the General Council shall be held on a date to be fixed by the Vice Chancellor in consultation with the [Chancellor]
[Substituted by Act 7 of 2005.]
.
- (ii)
a report of the working of the University during the previous year, together with a statement of receipts and expenditure, the balance sheet as audited, and the financial estimates shall be presented by the Vice Chancellor to the General Council at its annual meetings;

(iii)

meeting of the General Council shall be called by the Chancellor or by the Vice Chancellor either on his own or at the request of not less than ten members of the General Council;

(iv)

for every meeting of the General Council, fifteen days notice shall be given;

(v)

one-third of the members existing on the rolls of the General Council shall form the quorum;

(vi)

each member shall have one vote and if there be equality of votes on any question to be determined by the General Council, the person presiding over the meeting shall, in addition, have a casting vote; and

(vii)

[.....]

[Omitted by Act 7 of 2005.]

11.

Executive Council.

(1)

The Executive Council shall consist of the following persons; namely:

(a)

the Vice Chancellor of the University;

(b)

a nominee of the Chairman of the Bar Council of India, from amongst its members;

(c)

the Chairman, Bar Council of the State of Andhra Pradesh;

(d)

one Member of the Board of Governors of the Society nominated by the Chancellor;

(e)

Principal Secretary, Finance and Planning (Finance Wing) Department, Government of Andhra Pradesh;

(f)

Secretary, Law Department, Government of Andhra Pradesh, to be nominated by the Government of Andhra Pradesh;

(g)

Secretary, Higher Education, Education Department Government of Andhra Pradesh;

(h)

the Registrar of the University;

(i)

three teachers to be nominated by the Vice Chancellor of whom, one shall be amongst Heads of the Departments, one from Professors and one from Associate Professors by rotation for a period of one year².

(2)

the Director shall be the Chairman of the Executive Council.

(3)

(i)

where a person has become a member of the Executive Council by reason of the office or appointment he holds, his membership shall terminate when he ceases to hold that office or appointment;

(ii)

the term of office of the nominated members of the Executive Council other than ex-officio members shall be three years;

(iii)

a member of the Executive Council shall cease to be member, if he resigns or becomes of unsound mind or becomes insolvent or is convicted of a criminal offence involving moral turpitude. A member other than the Vice Chancellor or Registrar or teachers shall also cease to be a member if he accepts a full time appointment in the University; or if he being a teacher fails to attend three consecutive meetings of the Executive Council without the leave of the Vice Chancellor;

(iv)

a member of the Executive Council other than an exofficio member may resign his office by a letter addressed to the Vice Chancellor and such resignation shall take effect as soon as it has been accepted by him;

(v)

any vacancy in the Executive Council shall be filled by nomination by the respective nominating authority and on expiry of the period of vacancy, such nomination shall cease to be effective.

12.

Powers, Functions and Meetings of the Executive Council.

(1)

The Executive Council shall be the Chief Executive Authority of the University; and as such shall have all powers necessary to administer the university subject to the provisions of this Act and the Statutes made thereunder; and may make Regulations for that purpose and also with respect to matters provided hereunder.

(2)

the Executive Council shall have the following powers and functions:

(i)

[.....]

[Omitted by Act 7 of 2005.]

(ii)

to recommend the names of the three persons to the Chancellor for appointment as Registrar of the University on the recommendations of the Selection Committee constituted for the purpose by it which is headed by the Vice [Chancellor]
[Substituted by Act 7 of 2005.]

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(iii)

to prepare and present to the General Council at its annual meetings:

(a)

a report on the working of the University;

(b)

a statement of accounts; and

(c)

budget proposals for the ensuing academic year.

(iv)

to manage and regulate the finances, accounts, investments, properties, business and all other administrative affairs of the University and for tha purpose, constitute committees and delegate the powers to such committees or such officers of the University as it may deem fit;

(v)

to invest any money belonging to the University, including any unapplied income, in such stock, funds, shares or securities, as it may, from time to time, think fit, or in the purchase of immovable property in India, with the like power of varying such investments from time to time;

(vi)

to transfer or accept transfers of any movable or immovable property on behalf of the University;

(vii)

to enter into, vary, carryout and cancel contracts on behalf of the University and for that purpose to appoint such officers as it may think fit;

(viii)

to provide the buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(ix)

to entertain, adjudicate upon, and if it thinks fit, to redress any grievances of the officers, the teachers, the students and the employees of the University;

(x)

to create teaching, administrative, ministerial and other necessary posts, to determine the number and emoluments of

such posts, to specify the minimum qualifications for appointment to such posts on such terms and conditions of service as may be prescribed by the Regulations made in this behalf;

(xi)

to appoint examiners and moderators, and if necessary to remove them and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic Council;

(xii)

to select a common seal for the University; and

(xiii)

to exercise such other powers and to perform such other duties as may be considered necessary; or imposed on it by or under this Act.

(3)

(i)

the Executive Council shall meet at least once in four months and not less than fifteen days notice shall be given of such meeting;

(ii)

the meeting of the Executive Council shall be called by the Registrar under instructions of the Vice Chancellor or at the request of not less than five members of the Executive Council²;

(iii)

six members of the Executive Council shall form the quorum at any meeting;

(iv)

in case of differences of opinion among the members, the opinion of the majority shall prevail;

(v)

each member of the Executive Council shall have one vote and if there be equality of votes on any question to be determined by the Executive Council, the Chairman of the Executive Council or as the case may be, the Member presiding over that meeting shall, in addition, have a casting vote;

(vi)

every meeting of the Executive Council shall be presided over by the Vice [Chancellor]

[Substituted by Act 7 of 2005.]

and in his absence by a member chosen by the members present;

(vii)

If urgent action by the Executive Council becomes necessary, the Vice Chancellor may permit the business to be transacted by circulation of papers to the members of the Executive Council. The action so proposed to be taken shall not be taken unless agreed to by a majority of members of the Executive Council. The action so taken shall be forthwith intimated to all the members of the Executive Council. In case the authority concerned, fails to take decision, the matter shall be referred to the Chancellor whose decision shall be final². The paper shall be placed before the next meeting of the Executive Council for confirmation.

13.

Academic Council.

(1)

The Academic Council shall consist of the following persons, namely:

(a)

the Vice Chancellor who shall be the Chairman thereof;

(b)

one Judge of the Andhra Pradesh High Court, either sitting or retired, nominated by the Chancellor;

(c)

the Registrar;

(d)

three persons from amongst educationists of repute or men of letters or members of the learned professions or eminent public men, who are not in the service of the University, nominated by the Chancellor;

(e)

an eminent educationist nominated by the Government of Andhra Pradesh;

- (f)
a nominee of the Bar Council of India;
 - (g)
a nominee of the Bar Council of Andhra Pradesh;
 - (h)
all the Heads of the Departments;
 - (i)
all Professors other than the Heads of the Department;and
 - (j)
two members of the teaching staff, one each respectively representing the associate and assistant professors of the University nominated by the Vice-[Chancellor]
[Substituted by Act 7 of 2005.]
for the term specified;
Provided that an employee of the University shall not be eligible for nomination under category (d).
- (2)
The term of the members other than ex-officio members and those whose term is specified by clause (j) of subsection (1) shall be three years:
Provided that the term of the first Academic Council shall be five years.
14.
Powers, functions and meetings of the Academic Council.
- (1)
Subject to the provisions of the Act, Statutes and Regulations and overall supervision of the Executive Council, the Academic Council shall manage the academic affairs and matters in the University and in particular shall have the following powers and functions, namely:
- (i)
to report on any matter referred or delegated to it by the General Council or the Executive Council;
 - (ii)
to make recommendations to the Executive Council with regard to the creation, abolition or classification of teaching posts in the University and the emoluments payable and the duties attached thereto;
 - (iii)
to formulate and modify or revise schemes for the organisation of the faculties, and to assign to such faculties their respective subjects and also to report to the Executive Council as to the expediency of the abolition or sub-division of any faculty or the combination of one faculty with another;
 - (iv)
to recommend arrangements for the instruction and examination of persons other than those enrolled in the University;
 - (v)
to promote research within the University and to require from time to time, reports on such research;
 - (vi)
to consider proposals submitted by the faculties;
 - (vii)
to suggest policies for admissions to the University;
 - (viii)
to recommend recognise diplomas and degrees of other Universities and institutions and to determine their equivalence in relation to the certificates, diplomas and degrees of the University;
 - (ix)
to fix, subject to any conditions accepted by the General Council, the time, mode and conditions of competition for Fellowships, Scholarships and other prizes and to recommend for award the same;
 - (x)
to make recommendations to the Executive Council in regard to the appointment of examiners and if necessary their removal and fixation of their fees, emoluments and travelling and other expenses;
 - (xi)

to recommend arrangements for the conduct of examinations and the dates for holding them;

(xii)

to declare or review the result of the various examinations or to appoint committees or officers to do so, and to make recommendations regarding the conferment or grant of degrees, honours, diplomas, licences, titles and marks of honour;

(xiii)

to recommend stipends, scholarships, medals and prizes and to make other awards in accordance with the Regulations and such other conditions as may be attached to the awards;

(xiv)

to approve or revise lists of prescribed or recommended text books and to publish the same and syllabus at the prescribed courses of study;

(xv)

to approve such forms and registers as are, from time to time, required by the Regulations; and

(xvi)

to perform, in relation to academic matters, all such duties and to do all such acts as may be necessary for the proper carrying out of the provisions of this Act and the Regulations made thereunder.

(2)

(i)

The Academic Council shall meet as often as may be necessary, but not less than two times during an academic year;

(ii)

one half of the existing members of the Academic Council shall form the quorum for a meeting of the Academic Council;

(iii)

in case of difference of opinion among the members, the opinion of the majority shall prevail;

(iv)

each member of the Academic Council, including the Chairman of the Academic Council, have one vote and if there be an equality of votes on any question to be determined by the Academic Council, the Chairman of the Academic Council, or as the case may be, the member presiding over the meetings, shall in addition, have a casting vote;

(v)

every meeting of the Academic Council shall be presided over by the Vice Chancellor and in his absence by a member chosen in the meeting to preside on the occasion;

(vi)

if urgent action by the Academic Council becomes necessary, the Chairman of the Academic Council may permit the business to be transacted by circulation of papers to the members of the Academic Council. The action proposed to be taken shall not be taken unless agreed to, by a majority of the members of the Academic Council. The action so taken shall forthwith be intimated to all the members of the Academic Council. The papers shall be placed before the next meeting of the Academic Council for confirmation.

15.

Finance Committee.

(1)

There shall be a Finance Committee constituted by the Executive Council consisting of the following :

(a)

the Vice [Chancellor]

[Substituted by Act 7 of 2005.]

;

(b)

the Registrar; and

(c)

three members nominated by the Executive Council from amongst its members out of whom atleast one shall be from those nominated by the Chancellor and one from among them nominated by the Government of Andhra Pradesh.

(2)

The members of the Finance Committee other than the Vice-[Chancellor]

[Substituted by Act 7 of 2005.]

and Registrar, shall hold office so long as they continue as members of the Executive Council.

(3)

The functions and duties of the Finance Committee shall be as follows:

(a)

to examine and scrutinise the annual budget of the University and to make recommendations on financial matters to the Executive Council;

(b)

to consider all proposals for new expenditure and to make recommendations to the Executive Council;

(c)

to consider the periodical statement of accounts and to review the finances of the University from time to time and to consider re-appropriation statements and audit reports and to make recommendations to the Executive Council;

(d)

to give its views and to make recommendations to the Executive Council on any financial question affecting the University either on its own initiative or on reference from the Executive Council or the Vice-Chancellor.

(4)

The Finance Committee shall meet atleast thrice in every year.

Three members of the Finance Committee shall form the quorum.

(5)

The Vice-Chancellor shall preside over the meetings of the Finance Committee, and in his absence, the Registrar shall preside. In case of difference of opinion among the members, the opinion of the majority of the members present shall prevail.

15A.

[Planning Board.

[Inserted by Act 7 of 2005.]

- The Planning Board shall comprise of the following persons:

(1)

The Chancellor;

(2)

The Vice-Chancellor;

(3)

The founder President or in his absence a nominee of the Chancellor;

(4)

The Founder Director or in his absence a nominee of the Chancellor;

(5)

Registrar or in his absence the Deputy Registrar;

(6)

The senior most Male Teacher; and

(7)

The senior most Female Teacher.]

Chapter IV

Officers of the University

16.

Officers of the University.

- The following shall be the officers of the University:

(1)

the Vice-chancellor;

(2)

the Registrar;

(3)

Heads of the Departments;

(4)

such other person as may be prescribed by the Statutes as the officer².

17.

The Vice Chancellor.

- (i) The Vice Chancellor shall be a whole time salaried officer of the University.

(ii)

the Vice Chancellor shall be appointed by the Chancellor from out of a panel of not less than three persons recommended (the names being arranged in the alphabetical order) by a committee constituted under clause (iii);

Provided that if the Chancellor does not approve of any of the persons so recommended he may call for fresh recommendations;)

(iii)

the Committee referred to in clause (ii) shall consist of three members of whom one shall be nominated by the Academic Council, one by the Chairman, University Grants Commission and one by the Chancellor and the person nominated by the Chancellor shall be the convenor of the committee provided that no person who is an employee of the University shall be nominated as the member of the Committee.

(iv)

the Vice Chancellor shall hold office for a term of five years from the date on which he enters upon his office, of until he attains the age of seventy years, whichever is earlier, and he shall be eligible for re-appointment for a further terms till he attains the age of seventy years;

Provided that the Chancellor may require the Vice-Chancellor after his term has expired, to continue in office for such period, not exceeding a total period of one year as may be specified by him.)

(v)

the emoluments and other conditions of service of the Vice-Chancellor shall be as prescribed by Regulations.

(vi)

if the office of the Vice Chancellor becomes vacant due to death, resignation or otherwise or if he is unable to perform his duties due to ill health or any other cause, the Chancellor shall have the authority to designate a Professor of the University to perform the functions of the Vice Chancellor until the new Vice Chancellor assumes his office or until the existing Vice Chancellor attends to the duties of his office, as the case may be.²

(2)

The Vice [Chancellor]

[Substituted by Act 7 of 2005.]

shall;

(i)

ensure that the provisions of this Act, Statutes and Regulations are duly observed, and he shall have all powers as are necessary for that purpose;

(ii)

convene the meetings of the General Council, the Executive Council, the Academic Council and shall perform all other acts, as may be necessary to give effect to the provisions of this Act;

(iii)

preside over the meetings of the General Council in the absence of the Chancellor;

(iv)

be the competent authority to appoint the teachers, librarians, Accounts Officer and other officers in consultation with the Chancellor on the recommendations of the Selection Committee appointed by the Executive Council thereof for that purpose in accordance with the guidelines prescribed;

(v)

be the competent authority to disciplinary action against the above officers in accordance with the procedure prescribed;

(vi)

have all powers relating to the maintenance of proper discipline in the University;

(vii)

if, in the opinion of the Vice [Chancellor]

[Substituted by Act 7 of 2005.]

, any emergency has arisen which requires immediate action be taken, he shall take such action as he may deem fit and shall report the same for confirmation in the next meeting of the authority which in the ordinary course would have dealt with the matter.

18.

The Registrar.

(1)

The Registrar shall be appointed by the Vice Chancellor on the recommendations of the Selection Committee constituted by the Executive Council headed by the Vice Chancellor on such terms and conditions of service as it may specify subject to the provisions of Statutes and Regulations.²

(2)

(i)

the Registrar shall be Ex-Officio Member Secretary of all the authorities, Committees and other bodies of the University and shall also be the Convenor of all the meetings. He shall note and maintain the minutes of meetings;

(ii)

the Registrar shall be the principal adjutant of the Vice Chancellor in all matters pertaining to the administration of the University. The Executive Council may entrust to him special responsibilities and powers;

(iii)

The Registrar on the recommendations of the relevant Selection Committee constituted for the purpose in the prescribed manner and as approved by the Vice Chancellor shall have the power to appoint the non teaching staff including employees of last grade service and contingent staff. He shall be competent authority to take disciplinary action against such employees in accordance with such procedure as may be prescribed;²

(iv)

the Registrar shall comply with all directions and orders of the Executive Council and Vice Chancellor;

(v)

the Registrar shall be the custodian of records, common seal and such other property of the University as the Executive Council shall commit to his charge.

19.

Heads of the Departments.

(1)

There shall be a Head for each Department in the University.

(2)

The powers, functions, appointments and conditions of service of the Heads of the Departments shall be as prescribed by the Regulations.

20.

Other officers and employees.

(1)

Subject to the Regulations made for the purpose, every officer or employee of the University shall be appointed in accordance with a written contract which shall be lodged with the University and a copy thereof shall be furnished to the officer or employee concerned.

(2)

Any dispute arising out of a contract between the University and any of its officers or employees shall, at the request of the officer or the employee concerned or at the instance of the University, be referred to a Tribunal for arbitration consisting of three members appointed by the Executive Council as prescribed by the Regulations.

21.

Selection Committees.

- The Executive Council shall constitute various Selection Committees for appointment to the posts of officers and non-teaching staff including last grade service and contingent staff. The procedure for appointment of members of Selection Committees and the procedure to be adopted by the Committees shall be as may be prescribed by the Regulations.²

22.

Statutes and Regulations.

(1)

The first Statutes of the University shall be made by the Director with the approval of the President. They shall be placed before the General Council at its first meeting, which may adopt them with or without modifications.

(2)

The first Regulations of the University shall be made by the Director in consultation with the President. They shall be placed before the Executive Council at its first meeting which may adopt them with or without modifications.

23.

Appointment of first Director and first Registrar.

- Notwithstanding anything in this Act and the Statutes, the first Director and the first Registrar shall be appointed by the Chairman of the Society on a salary, to be fixed by him and each of the said officers shall hold office for a period to be fixed by him but not exceeding three years.

Chapter V

General

24.

Deemed validity of appointments.

- Notwithstanding anything contained in any other law of instrument having the force of law for the time being in force, the appointments made to any post in the University in accordance with the Statutes and Regulations shall be deemed to be valid and in accordance with law.

25.

Vacancy, etc., not to invalidate any act or proceeding.

- No act or proceeding of the General Council, the Executive Council or any other authority or Officer or body of the University shall be invalidated or questioned on the ground merely of the existence of any vacancy or defect in the constitution thereof.

26.

Indemnity against General Proceedings.

- No suit, prosecution or other legal proceedings shall lie against the University or any authority or officer or employee of the University for anything which is in good faith done or intended to be done in pursuance of the provisions of this Act, or the Statutes or Regulations or Rules made thereunder.

27.

Overriding effect.

- The provisions of this Act and the Rules, Statutes and Regulations made thereunder shall have effect notwithstanding anything inconsistent therewith in any other law or instrument having the force of law for the time being in force.

28.

Power to remove difficulties.

- If any difficulty arises as to the first constitution or reconstitution of any authority of the University after the commencement of this Act or otherwise in giving effect to the provisions of this Act, the Government, may, by order, make such provisions not inconsistent with the provisions of this Act, as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after expiry of five years from the date of commencement of this Act.

29.

Powers to make rules.

- 1. On the recommendations of the General Council, the Government may, by notification make rules to carry out the purposes of this Act.

2. Every rule made under this Act shall immediately after it is made, be laid before the Legislative Assembly of the State if it is in the session, and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following the Legislative Assembly agrees in making any modification in the rule or in the annulment of the rule, the rule shall from the date on which the modification or the annulment is notified, have effect only in such modified form or shall stand annulled as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

30.

Repeal of Ordinance 3 of 1998 and Ordinance 5 of 1998.

- The National Academy of Legal Studies and Research Ordinance, 1998 and the National Academy of Legal Studies and Research Second Ordinance, 1998 are hereby repealed.

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